

Some architectural pillars crumbling

By Robert Campbell

Like other professions, architecture is under siege today. In fact, the whole concept of "professionalism" is being questioned.

The attacks come from both outside and inside the professions.

The public attackers are the consumer movement, the Justice Department and the Federal Trade Commission. They say that architecture and other professions have been little more than licensed monopolies, that their ethical codes and membership rules are basically ruses to thwart competition.

At the same time, from inside architecture comes a second attack. Architects themselves are saying that these very same ethical codes are preventing members from competing effectively with rival kinds of designer-builders.

The double attack won two big victories at last month's convention of the American Institute of Architects (AIA) in Dallas. The effects will be far-reaching.

In response to government pressure, the Institute gave up its time-honored ban on allowing members to advertise.

And in response to its internal criticisms, the Institute abandoned, as a three-year experiment, its rule against members holding a financial interest in construction firms.

These two rules had previously been regarded as the very pillars of professionalism, the watershed that made architecture a profession rather than a trade.

What will the changes mean to the public?



Illustration for The Globe by Jon McIntosh

Let's look first at advertising.

Architects, of course, aren't the only ones being hit by this one. All of what used to be called the "learned professions" are now compelled to permit advertising because the Supreme Court has struck down the old idea that these professions constitute a kind of public-spirited priesthood, different from other kinds of work.

In one case that happened to involve the legal profession, but applies as well to architects, the Court said:

"The belief that lawyers are somehow above trade and become an anachronism. This historical foundation for the advertising restraint has crumbled."

What worries architects about the idea of advertising is the effect it has had on other fields. In pharmacy, for instance, it was once unethical to advertise prices of prescription drugs. Now that has changed and the airwaves are full of commercials by big drug-store chains quoting cut-rate prices.

As the supermarket drove out the corner grocer, so, it's feared, the drug chains will displace the small druggist.

Watching such changes, some observers dread the arrival of nationally franchised chains of legal or medical or accounting or architectural clinics, the McDonalds and Burger Kings of cheap, standardized professional service. But there are others who welcome this same

prospect, believing it will cut the price to the consumer.

The source of the Supreme Court's attack on the professions is in two cherished principles: Freedom of Speech and the Anti-Trust Laws.

In 1977 the Court ruled that advertising is a form of "commercial speech" and entitled to First Amendment protection. In the past, freedom of speech meant the right to say what you wish, but now it is being extended to mean, also, the right to HEAR what you wish — to hear any and every view. This changing interpretation lies behind the Court's view that no one can ban advertising.

The Anti-Trust argument is also a new departure. It rests on the idea that the professional organizations — the American Institute of Architects, the medical and bar associations — really exist not so much to protect the public as to protect their own members. This is seen as an attempt to restrict competition.

What the professions have always viewed as "professional ethics," the noble principles that distinguish them from shysters and sharpies, are being challenged by consumer groups as merely a clubby attempt to keep up the price of services. It's part of the general trend to consumerism in the 1970s.

Since 1972, architects have seen one after another of their ethical rules demolished. Gone are the official rate schedules, once published by the AIA as a guide to the fees architects should charge. Gone is the rule that architects should not be so ungentlemanly as to bargain against each other for jobs on the basis of fee. Gone is the rule against ARCHITECTS, Page A4

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the rule against entering architectural competitions not sanctioned by AIA. Gone is the rule governing the conditions under which one architect can replace another on a particular building job.

Many of these changes came from the state licensing boards before being adopted by the AIA. Once rubber stamps for the professional organizations, the licensing boards are now taking an independent, consumer-oriented line.

Will advertising, the latest of the rules to go, be the straw that breaks the architect's back? Or will it be good for everyone? Nobody knows.

So far, it hasn't affected the lawyers much, one way or the other. Some advertise, most don't. The fear among architects is that, as with drug chains, advertising will help the big at the expense of the small. Those who can afford ads will gain, others will lose.

Critics also claim that it doesn't make sense to advertise architectural services as if they were competing cans of tuna. Ads can't convey anything meaningful because one architect will perform better or faster than another, and the demands of each new building project are unpredictable.

It's also argued that, as happened with TV programming, advertising will commercialize

the profession and force its product to the lowest common denominator.

Arguing the other side is Paula Gold, head of the Consumer Affairs Division of the Massachusetts Attorney General's office. Gold points out that architects are employed not so much by the general public as by more sophisticated consumers, such as institutions and corporations. These clients should have sense enough to shop for more than price.

Others who support advertising say it will give the whole profession greater visibility and offer young, unknown firms a way to break in.

The new rules allow advertising only in print, not in broadcasting, and ban photos and endorsements. But these restraints may soon go too.

What the final effect will be, no one knows. One thing is sure: left to themselves, neither architecture nor its fellow professions would have chosen to give up the bans on advertising.

The other change is even more controversial. It took three years of hot debate before architects would give up the rule that prevented AIA members from also being building contractors.

Up to now, unless a building's architect was also its owner, he was ethically prohibited from having a financial interest in its construction.

The argument was that such a builder-architect would be serving two masters: the owner,

who hired him as an independent professional, and the builder, in whose profit or loss he would share. It would be a conflict of interest.

The change in this rule was a response to the increasing prevalence in the building industry of "package" designer-builders. Usually headed by a building contractor, these firms offer com-

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plete service — design, engineering, construction, sometimes even mortgage advice. Such "one-stop shopping" is supposed to save a client money and time. And if things go wrong, he'll have a single point of responsibility to blame.

As long as members of the AIA were barred

from financial interest in the construction business, they couldn't participate in this so-called "design-build" approach, except as employees of the contractor. Some architects chafed at this.

Oddly, design-build flies in the face of the other changes being pursued by the consumer movement.

For instance, it's recently become illegal, in Massachusetts, to diagnose for a hearing aid and also sell that hearing aid to the customer. Profiting from your own diagnosis is seen as a conflict of interest.

Opponents of design-build claim that an architect who prescribes for your building needs, then builds the building for you, is in the same position as the hearing-aid man. The more he prescribes, the more he stands to gain.

But supporters of design-build say the whole idea of avoiding conflict of interest is a myth.

Last year's AIA president, John McGinty, says: "What makes us professionals is not the absence of potential conflict. It's how we resolve that conflict." He says any professional will put the public and the owner's interest ahead of his own.

Carl Sapers, a Boston lawyer who is counsel to the National Council of Architectural Registration Boards, is one who is skeptical of design-build. He suggests a parallel between the traditional owner-architect-builder triangle and

the American system of checks and balances among the three branches of government, a parallel he thinks is healthy.

The supposed advantage to the prospective building owner from design-build is that he gets a guaranteed price and date of construction at an early stage, rather than having to wait for elaborate drawings and contractors' bids. But Sapers claims the owner will have to pay for this convenience, because the designer-builder must include a contingency to cover his own risks. And if there's a later cost crunch, it will be the building quality that suffers.

"The public is hurt by design-build," says Sapers. "The public's greatest interest in a building is its durability, not the convenience or even the cost of getting it built."

What all the changes come down to is one fact: We have entered an age of consumer architecture, of consumer professionalism. No one is buying the old ideal of a professional priesthood of doctors or lawyers or architects, muttering their special languages and following their self-created ethics. Among those who aren't buying it are many of the professionals themselves.

It's a period in which we'll all have to be wary, as the professions and public feel out an entirely new relationship.

Robert Campbell is the Globe's architecture critic.